

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: 504904/2018

City File No: 2018-019558

MARGARET NUNZIATA

Plaintiff,

SUMMONS

vs.

Plaintiffs designate Kings
County as the place of trial.

THE CITY OF NEW YORK, **NEW YORK CITY POLICE OFFICER
STEVEN FURSA (SHIELD NUMBER 1245), NEW YORK CITY
POLICE OFFICER PAUL T. MALLILO (SHIELD NUMBER 2575),**
and KINGS COUNTY DISTRICT ATTORNEY'S OFFICE,

The basis of venue is:
Place of Occurrence

Defendant(s).

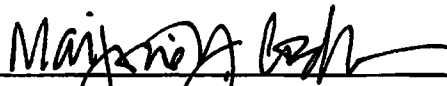
To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Central Islip, New York
February 5, 2020

Yours etc.

COELLO & LORENZOTTI, PLLC



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TO: James E. Johnson,, Corporation Counsel of the City of New York, 100 Church Street, 4th
Floor, New York, New York 10007
TO: New York City Police Officer Steven Fursa (Shield Number 1245)
TO: New York City Police Officer Paul T. Mallilo (Shield Number 2575)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

MARGARET NUNZIATA

Plaintiff(s),

vs.

THE CITY OF NEW YORK, **NEW YORK CITY POLICE OFFICER
STEVEN FURSA (SHIELD NUMBER 1245), NEW YORK CITY
POLICE OFFICER PAUL T. MALLILO (SHIELD NUMBER 2575),
and KINGS COUNTY DISTRICT ATTORNEY'S OFFICE,**

Defendant(s)

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**AMENDED VERIFIED
COMPLAINT**

Plaintiff by her attorneys Coello & Lorenzotti, PLLC, for her amended complaint herein, upon
information and belief, at all times herein after mentioned respectfully alleges as follows:

PARTIES

1. Plaintiff is a natural person residing in the County of Suffolk, State of New York.
2. Defendant THE CITY OF NEW YORK was and still is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.
3. Defendant THE CITY OF NEW YORK, by its agents, servants and/or employees
operated and maintained a police force known as THE NEW YORK CITY POLICE
DEPARTMENT, the headquarters of which are located at One Police Plaza, New
York, New York.
4. Defendant THE CITY OF NEW YORK, by its agents, servants and/or employees
operated and maintained a District Attorney's Office in the County of Kings.
5. Defendant **STEVEN FURSA (SHIELD NUMBER 1245), NEW YORK CITY POLICE
OFFICER PAUL T. MALLILO (SHIELD NUMBER 2575), are sued in their individual,
official and supervisory capacities.**

1 **5. Defendant STEVEN FURSA (SHIELD NUMBER 1245), NEW YORK CITY POLICE**

2 **OFFICER PAUL T. MALLILO (SHIELD NUMBER 2575), are sued in their individual,**
3 **official and supervisory capacities.**

4 **6. The individual defendants, either personally or through their agents, were acting**
5 **with and in furtherance of the official rules, regulations, laws, customs, usages**
6 **and/or practices of the City of New York and the New York City Police Department**
7 **(hereinafter "NYPD").**

8 **7. All of the acts of NYPD officers complained of herein were committed by one or**
9 **more of the aforementioned defendants. Plaintiff is presently without sufficient**
10 **knowledge or information to particularize the specific acts of individual defendants.**

11 **8. The individual defendants were acting pursuant to their authority as NYPD**
12 **employees and not withstanding their unconstitutional and unlawful conduct, the**
13 **actions and/or inactions of the individual defendants were taken in the course of**
14 **their duties and were incidental to their otherwise lawful function as agents,**
15 **servants, and employees of the NYPD.**

16
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18 **NOTICE OF CLAIM**

19 **9. That plaintiff timely served a Notice of Claim upon the City of New York within**
20 **ninety days of the accrual of all the causes of action described in this complaint.**

21 **10. That a hearing, pursuant to General Municipal Law Section 50-H was held on**
22 **February 15, 2018.**

23 **11. Defendants have not requested a physical examination of the plaintiff.**
24
25

13. More than thirty days have elapsed since service of the notice of claim and said claim remains unadjusted and defendants refuse to make any adjustment of same.

FACTS

15. On January 7, 2017 at approximately 9:00 AM, Plaintiff went to Kings County Hospital Rehabilitation Clinic to, among other things, obtain her prescribed take home bottle of medication, methadone.

16. At or about 9:30 AM plaintiff exited Kings County Hospital Rehabilitation Clinic and entered a motor vehicle, which provided car service.

17. At or near Winthrop Street and Remsen Avenue, the motor vehicle wherein Plaintiff was a passenger was stopped by an unmarked police car and plain clothed officers.

18. The aforementioned officers exited the aforementioned unmarked motor vehicle with guns drawn.

19. The aforementioned officers ordered the Plaintiff to exit the motor vehicle while pointing guns to her face and back.

20. A few seconds after Plaintiff exited the motor vehicle a marked police car came upon the scene.

21. The officers in the marked police car exited their motor vehicle with guns drawn.

- 1 22. After Plaintiff exited the motor vehicle, Police officers at the scene recovered
2 Plaintiff's prescribed take home bottle of Methadone, but no other unlawful drugs.
- 3 23. One of the officers on scene suggested to another officer that Plaintiff should be
4 released as there were no grounds to arrest her. The officer spoken to responded
5 that Plaintiff should be arrested as she was a "junky" anyway.
- 6 24. While still at the scene of the arrest, Plaintiff was ridiculed for her appearance,
7 specifically, officers ridiculed Plaintiff and questioned her sexual identity.
- 8 25. Upon information and belief, Plaintiff was arrested for criminal possession of a
9 controlled substance and/or for sale of a controlled substance.
- 10 26. Plaintiff was handcuffed and taken to the 71st Precinct.
- 11 27. While in custody at the 71st precinct, officers ridiculed Plaintiff and questioned
12 her sexual identity.
- 13 28. While in custody at the 71st precinct, officers ridiculed Plaintiff and called her a
14 "dyke".
- 15 29. While in custody at the 71st precinct, officers attempted to conduct a search of
16 Plaintiff's person to determine her identity. However, Plaintiff advised police
17 officers that she was a female and requested that a female officer be permitted to
18 search her person. Officers discontinued the search of Plaintiff's persons after
19 Plaintiff repeatedly requested a female officer.
- 20 30. Plaintiff's belonging, including her car keys, cell chargers, Android Tablet and
21 take home bottle of prescribed methadone were taken by the officers at the scene.
- 22 31. Plaintiff was detained at the 71st Precinct for several hours until she was
23 transported to Kings County Criminal Court for arraignment.
- 24 32. Plaintiff was arraigned at Kings County Court at approximately 1:00 AM on
25 January 8, 2017 at which time was released on her own recognizance.

1 33. At her arraignment, Plaintiff was charged with Criminal Possession of a
2 Controlled Substance in the Seventh Degree in violation of New York Penal Law
3 §220.03.

4 34. Plaintiff was charged with criminal possession of a controlled substance for
5 possessing her prescribed take home bottle of medication/methadone, which she
6 had lawfully obtained from Kings County Hospital Rehabilitation clinic.

7 35. In addition to the foregoing, it appears that Plaintiff was charged for unlawfully
8 dispensing a portion of her prescribed methadone to the operator of the motor
9 vehicle/car service driver wherein she was a passenger.

10 36. At the time of her arrest, Plaintiff's prescribed methadone was sealed.

11 37. Plaintiff had not tampered with and or made any efforts to open the bottle of
12 prescribed methadone.

13 38. Plaintiff did not dispense a portion of her prescribed methadone to the operator
14 of the motor vehicle she was a passenger in or to anyone else.

15 39. The operator of the motor vehicle wherein Plaintiff was a passenger was also
16 arrested; however, upon information and belief, all charges against him were
17 dismissed.

18 40. Plaintiff appeared at Kings County Criminal Court several time for a period of
19 nine months.

20 41. All charges against the Plaintiff were ultimately dismissed on or about October 2,
21 2017.

22 42. Plaintiff's belonging, including her car keys, cell chargers, Android Tablet and
23 take home bottle of prescribed methadone were never returned to the Plaintiff.

24 43. No unlawful drugs or contraband were discovered on plaintiff's person and/or
25 near the plaintiff at the time of her arrest.

1 44. Plaintiff was unable to obtain a refill of her prescribed methadone until Monday
2 January 9, 2017 and as a result thereof suffered withdrawal symptoms.

3 45. Plaintiff was subjected to humiliation and suffered mental anguish, economic
4 damages and physical injury from being arrested and unlawfully incarcerated.

5 **FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR ASSAULT AND BATTERY**

6 46. Plaintiff repeats, reiterates and realleges each and every allegation contained in
7 the above paragraphs with the same force and effect as though fully set forth
8 herein.

9 47. As a result of defendants' individual and collective acts, plaintiff was subjected
10 to assault and battery in violation of her rights under the laws of the State of New
11 York when she was subjected to an unlawful arrest by the defendants.

12 48. The acts of the defendant police officers were intentional.

13 49. The acts of the defendant police officers resulted in harmful, offensive, and
14 nonconsensual bodily contact with the plaintiff amounting to the civil tort of
15 battery.

16 50. Defendant police officers acted within the scope of their duties as police officers
17 for the City of New York and in the interest of the City of New York when they
18 assaulted and battered plaintiff.

19 51. As a result of defendants' actions and/or inactions, plaintiff suffered physical
20 injuries, mental and emotional trauma and damage to her reputation. Plaintiff has
21 also lost enjoyment of life and was deprived of her movement, civil rights and
22 overall personal liberty in violation of the United States Constitution, the statutory
23 and common laws of New York State and the New York State Constitution.
24
25

1 52. As a result of the foregoing, plaintiff has been damaged and seeks
2 compensatory damages, along with any punitive damages, costs, and attorneys'
3 fees as may be deemed proper by a jury.

4 53. The amount of damages exceeds the jurisdiction of all lower courts that would
5 otherwise have jurisdiction.

6 **SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR FALSE ARREST**

7 54. Plaintiff repeats, reiterates and realleges each and every allegation contained in
8 the above paragraphs with the same force and effect as though fully set forth
9 herein.

10 55. That on January 7, 2017, plaintiff was taken into police custody without having
11 committed any offense and defendants, through their agents, servants and/or
12 employees did not have reasonable grounds or probable cause to believe that
13 plaintiff had committed any offense.

14 56. Defendants were aware that probable cause did not exist for the arrest and
15 detention of the plaintiff and that said arrest and detention were unlawful and
16 without justification or excuse.

17 57. All the above alleged wrongful acts were done by defendants with malicious
18 intent to arrest, oppress and injure the plaintiff and said acts were committed in
19 bad faith.

20 58. As a result of defendants' actions and/or inactions, plaintiff suffered physical
21 injuries, mental and emotional trauma and damage to her reputation. Plaintiff has
22 also lost enjoyment of life and was deprived of her movement, civil rights and
23 overall personal liberty in violation of the United States Constitution, the statutory
24 and common laws of New York State and the New York State Constitution.
25

59. As a result of the foregoing, plaintiff has been damaged and seeks compensatory damages, along with any punitive damages, costs, and attorneys' fees as may be deemed proper by a jury.

60. The amount of damages exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR FALSE IMPRISONMENT

61. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs with the same force and effect as though fully set forth herein.

62. As a result of defendants' individual and collective acts, plaintiff was subjected to unlawful imprisonment in violation of her rights.

63. Plaintiff's false imprisonment commenced at or about 12:01 a.m. on January 7, 2017 and continued for several hours until the plaintiff was released from Court on January 8, 2017.

64. The defendants intended to confine the plaintiff and the plaintiff was conscious of the confinement.

65. Plaintiff did not consent to the confinement.

66. As a result of defendants' actions and/or inactions, plaintiff suffered physical injuries, mental and emotional trauma and damage to his reputation. Plaintiff has also lost enjoyment of life and was deprived of her movement, civil rights and overall personal liberty in violation of the United States Constitution, the statutory and common laws of New York State and the New York State Constitution.

67. As a result of the foregoing, plaintiff has been damaged and seeks compensatory damages, along with any punitive damages, costs, and attorneys' fees as may be deemed proper by a jury.

1 68. The amount of damages exceeds the jurisdiction of all lower courts that would
2 otherwise have jurisdiction.

3 **FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR ABUSE OF PROCESS**

4 69. Plaintiff repeats, reiterates and realleges each and every allegation contained in
5 the above paragraphs with the same force and effect as though fully set forth
6 herein.

7 70. The actions of the defendants in causing plaintiff to be arrested, assaulted,
8 battered and falsely imprisoned were effected with the ulterior purposes of causing
9 plaintiff to be unlawfully deprived of her liberty and civil rights, to suffer
10 inconvenience, humiliation, shame, embarrassment and damage to her reputation
11 and good name.

12 71. The arrest, assault and batter and false imprisonment of plaintiff by the
13 defendants was wrongful, malicious, willful and without justification or excuse and
14 an abuse of judicial process.

15 72. By reason of the foregoing, plaintiff was, under color of process, unlawfully
16 deprived of her liberty and civil right, caused to suffer inconvenience, humiliation,
17 shame, embarrassment, damage to her reputation and good name,

18 73. As a result of the foregoing, plaintiff has been damaged and seeks
19 compensatory damages, along with any punitive damages, costs, and attorneys'
20 fees as may be deemed proper by a jury.

21 74. The amount of damages exceeds the jurisdiction of all lower courts that would
22 otherwise have jurisdiction.

FIFTH CAUSE OF ACTION**ON BEHALF OF PLAINTIFF FOR INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS**

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs with the same force and effect as though fully set forth herein.

76. As a result of defendants' individual and collective reckless and outrageous acts, discussed herein, plaintiff was subjected to intentional and negligent infliction of emotional distress.

77. As a result of defendants' actions and/or inaction, negligent and outrageous conduct plaintiff suffered severe emotional distress psychological, mental distress, and anxiety.

78. As a result of the foregoing, plaintiff has been damaged and seeks compensatory damages, along with any punitive damages, costs, and attorneys' fees as may be deemed proper by a jury.

79. The amount of damages exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction

SIXTH CAUSE OF ACTION**ON BEHALF OF PLAINTIFF AGAINST THE INDIVIDUAL DEFENDANTS**

80. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs with the same force and effect as though fully set forth herein.

81. Plaintiff in no way provoked or encouraged the aforesaid physical battery and other tortuous conduct by the individual defendants.

82. The Defendants' physical contact with said plaintiff were not justified by an privilege held by the defendants or any probable cause or reasonable suspicion of

1 any criminal conduct by said plaintiff, and plaintiff was not engaged in any unlawful
2 activity whatsoever.

3 83. If certain of the individual defendants did not themselves engage in tortuous
4 conduct or the physical battery, arrest, abuse and other tortuous conduct upon the
5 plaintiff, said individual defendants failed to prevent the physical battery, arrest,
6 abuse and other tortuous conduct upon the plaintiff by other individual defendants
7 despite having a duty to do so and said failure to act being either intentional and/or
8 intentional was in gross disregard of the plaintiff's civil rights.

9 84. Defendants' individual and collective acts and/or omissions were pursuant to an
10 agreement and/or conspiracy among them to, while acting under color of state law,
11 deprive plaintiff of his civil rights and deprive her of equal protection or equal
12 privileges and immunities based on racial or other discriminatory animus and on
13 pretexts in order to meet productivity goals in minority and low-income
14 neighborhoods.

15 85. Defendants' individual and collective acts and/or omissions to act caused the
16 plaintiff severe personal injuries, social stigma, damage to her reputation, mental
17 anguish and distress.

18 86. As a result of the foregoing, Plaintiff has also lost enjoyment of life and was
19 deprived of her movement, civil rights and overall personal liberty.

20 87. Defendants' individual and collective acts and/or omissions violated the
21 plaintiff's civil rights, as rights are secured by 42 U.S.C. 1981, 1983, 1985(3), and
22 1986 as well as the Constitution of the State of New York and the United States,
23 including the Fourth, Fifth, Eighth and Fourteenth Amendments thereto, said civil
24 rights including, but not limited to the right to be free from arbitrary and
25 groundless arrest; the right to be free from cruel and unusual punishment and

1 summary punishment; the right to be free in her person from unlawful restraints
2 on her movement; the right to not be subjected to imprisonment without due
3 process of law and the right to enjoy equal protections of the laws; the right to be
4 secure in her person and/or property; the right to have persons entrusted with
5 legal authority to act to enforce her civil rights; the right to have those entrusted
6 with legal authority to act to enforce her civil rights or to be themselves
7 adjudicated as having violated the plaintiff's civil rights; and the right to be free
8 from conspiracies to violate her civil rights by those acting under color of state law.

9 88. By reason of the foregoing, plaintiff was caused to be falsely arrested and
10 illegally deprived of her liberty and civil rights; was caused to suffer imprisonment
11 and confinement; was caused to be assaulted and battered thereby sustaining
12 conscious pain and suffering; was caused to suffer drug withdrawal symptoms
13 while making efforts to rehabilitate herself ; was incapacitated from her usual and
14 vocation and suffered mental and emotional trauma.

15 89. As a result of the foregoing, plaintiff has been damaged and seeks compensatory
16 damages, along with any punitive damages, costs, and attorneys' fees as may be
17 deemed proper by a jury.

18 90. The amount of damages exceeds the jurisdiction of all lower courts that would
19 otherwise have jurisdiction.

20
21 **SEVENTH CAUSE OF ACTION**
22 **ON BEHALF OF PLAINTIFF AGAINST DEFENDANT CITY OF NEW YORK**

23 91. Plaintiff repeats, reiterates and realleges each and every allegation contained in
24 the above paragraphs with the same force and effect as though fully set forth
25 herein.

1 92. As a result of defendants' individual and collective acts, plaintiff was unlawfully
2 detained, searched and arrested in violation of her civil rights under the Fourth and
3 Fourteenth Amendments to the United States Constitution and in violation of her
4 rights under the statutory and common laws of New York State and the New York
5 State Constitution.

6 93. There was no probable cause for any of the allegations made by any of the
7 individual defendants of criminal or other improper conduct by the plaintiff.

8 94. There was no probable cause or other legal excuse or privilege for the aforesaid
9 instances of assault, battery, false arrest, false imprisonment and intentional
10 infliction of emotional distress upon plaintiff.

11 95. Various employees of the defendant THE CITY OF NEW YORK/THE NEW YORK
12 CITY POLICE DEPARTMENT, knew that the individual defendants or certain of the
13 individual defendant, falsely represented to other employees of the defendant THE
14 CITY OF NEW YORK/THE NEW YORK CITY POLICE DEPARTMENT that plaintiff had
15 committed the criminal offense previously alleged in order to make it appear that
16 there had been a justification for the arrest, imprisonment, assault and battery of
17 plaintiff.

18 96. In order to protect the individual defendants, or certain of the individual
19 defendants from civil and criminal liability for such acts, THE CITY OF NEW YORK its
20 agents, servants and/or employees failed to disclose such false statement by the
21 individual defendants, or certain of the individual defendants and otherwise
22 assisted the individual defendants, or some of them, in making false statements all
23 for the purpose of protecting the individual defendants, or some of them from civil
24 and criminal liability for the unlawful arrest, imprisonment, assault and battery of
25 the plaintiff.

- 1 **97. By the actions described above, the defendant THE CITY OF NEW YORK / THE**
2 **NEW YORK CITY POLICE DEPARTMENT, by the acts of its employees, including the**
3 **individual defendants, or some of the individual defendants, in furtherance of the**
4 **official policies and/or customs of the defendant THE CITY OF NEW YORK, deprived**
5 **plaintiff of the following clearly established and well settled constitutional rights:**
6 **(a) Freedom from unreasonable stops; Freedom from unreasonable frisks;**
7 **Freedom from unreasonable searches and seizures, said rights being secured by the**
8 **Fourth Amendment of the United States Constitution, which guarantees to the**
9 **plaintiff that she be free from unreasonable seizures and searches of her person,**
10 **and the Fifth and Fourteenth Amendments of the United States Constitution, which**
11 **protect plaintiff from deprivation of liberty and summary punishment without due**
12 **process; (b) Freedom from deprivation of liberty and summary punishment without**
13 **due process of law as secured by the Fifth and Fourteenth Amendments of the**
14 **United States Constitution; and (c) Freedom from unreasonable searches and**
15 **seizures of plaintiff's person and/or property, as said rights are secured by the**
16 **Fourth and Fourteenth Amendments of the United States Constitution.**
- 17 **98. The individual and/or collective acts or omissions to act of the individual**
18 **defendants were done either maliciously or by acting with a reckless disregard for**
19 **whether plaintiff's rights would be violated by their actions.**
- 20 **99. The individual defendants, or some of them, committed the foregoing acts or**
21 **omissions without just and legal cause, thereby violating the right of the plaintiff**
22 **under the laws of the Constitution of the United States, in particular the Fourth,**
23 **Fifth and Fourteenth Amendments, and her rights under the Constitution and laws**
24 **of the State of New York.**
25

1 **100. In committing the aforesaid acts or omissions, the individual defendants acted**
2 **illegally and directly violated the rules and regulations of the NYPD and failed to**
3 **enforce said rules and regulations, in particular those rules and regulations**
4 **regarding the proper procedures to follow during and after an arrest, the proper**
5 **language to use when dealing with members of the public, the proper grounds for**
6 **making an arrest, the proper way of identifying themselves as police officers when**
7 **out of uniform, the proper means and manner in which to question a person in**
8 **connection with a law enforcement investigation and all other appropriate and**
9 **relevant rules and regulations governing defendants that were applicable under the**
10 **circumstances.**

11 **101. The aforesaid acts and/or omissions of the individual defendants were pursuant**
12 **to, and in furtherance of, an official policy or custom of the defendant THE CITY OF**
13 **NEW YORK.**

14 **102. The aforesaid official customs and practices of the defendant THE CITY OF NEW**
15 **YORK/ THE NEW YORK CITY POLICE DEPARTMENT were implemented and created**
16 **by its employees, including those supervisory and/or commanding employees of**
17 **the NYPD whose acts and/or omissions create "official policies, customs and**
18 **practices" within the meaning of 42 U.S.C. 1983.**

19 **103. Said official customs and practices included, but are not limited to, the**
20 **following:**

- 21 **(a) Arresting innocent individuals based on a pretext, in order to meet productivity**
22 **goals;**
23 **(b) Fabricating evidence against individuals;**
24 **(c) Encouraging, allowing and/or ratifying a policy and custom whereby senior**
25 **commanding police officers cover up or otherwise hinder the disciplining**
 and/or prosecution of those police officers under their command that have
 engaged in unjustified, unreasonable and illegal use of force, search and arrest

1 powers;

2 (d) Maintaining a system for disciplining police officers and investigating civilian
3 complaints of improper police conduct that fails to credit testimony of
4 complainants and other non-police officer witnesses and uncritically and
without questions relies on reports of police officers involved in such incidents;

5 (e) Maintaining a system for disciplining police officers and investigating civilian
6 complaints of improper police conduct that is dominated and controlled by
7 police department employees who are unable to be impartial and who
systematically refuse to give proper weight to evidence of police misconduct;

8 (f) Tolerating the use of racist slurs and sentiments among members of its police
9 department and failing to discipline or discharge those police officers engaged
in such conduct;

10 (g) Failing to properly hire, train and supervise police officers in a fashion that
11 would encourage police officers not to engage in the unjust, unreasonable,
12 illegal and abusive use of force and search and arrest powers, and in ratifying,
13 justifying and protecting from civil and criminal liability the acts of those police
14 officers that are unjustified, unreasonable and involve illegal or abusive use of
force and search and arrest powers;

15 (h) Failing to discipline, suspend and/or otherwise take remedial action against
16 those employees of the NYPD who, while acting under color of state law,
violate/violated the civil rights of the public;

17 (i) Allowing, creating and/or otherwise permitting an environment whereby a
18 custom and practice known as "the wall of silence" exists. Said custom and
19 practice involves a virtually uniform refusal by New York City police officers to
20 testify truthfully about instances of misconduct and civil rights violations. Said
21 custom and practice involves either failing to testify about, or otherwise act to
22 prevent, police misconduct and civil rights violations. Said custom and
23 practice also involves perjury by police officers that is used to exonerate other
24 police officers from charges of misconduct and/or civil rights violations and/or
is used to deem such charges "administratively unproved" for the purposes of
Internal Affairs investigations and administrative discipline of police officers;

25 (j) Active participation and/or condoning of conspiracies by various members of

1 its police force, including senior commanding and/or other supervisory police
2 officers, to, while acting under color of state law, deprive non-Caucasian
3 persons of their civil rights.

4 (k) Failing to train police officers in NYPD's implementation of 2012 Patrol Guide
5 revisions for LGBTQ and TGNC people.

6 (l) Failing to track all LGBTQ related complaints alleging bias by police officers.

7 104. On or about November 2017, The New York City Department of Investigation
8 conducted an investigation into the NYPD's implantation of and adherence to the
9 2012 Patrol Guide revisions and the NYPD's handling of complaints of officer
10 misconduct where the subject's actual or perceived sexual orientation or gender
11 identity may be related to their complaint, including allegations of bias.

12 105. The aforementioned investigation revealed "clear gaps in NYPD's
13 implementation of and training on the revisions as well as inadequacies in how the
14 NYPD tracks LGBTQ-related complaints alleging police misconduct".

15 106. During all relevant times, the defendant THE CITY OF NEW YORK permitted and
16 tolerated a pattern and practice of unjustified, unreasonable and illegal use of force
17 and search and arrest powers on LGBT and TGNC persons by its police officers.
18 Although such actions were improper and illegal, the police officers involved were
19 not prosecuted, disciplined, or subjected to restraint, and such incidents were, in
20 fact, covered up with official claims that such improper and illegal acts were
21 justified and proper and/or that the evidence available was insufficient to either
22 charge the police officers involved with committing such acts or exonerate such
23 police officers or find that the claims of improper or illegal conduct were
24 unfounded. As a result, the police officers employed by defendant THE CITY OF
25 NEW YORK were caused and encouraged to believe that LGBT and TGNC persons
could be subjected to unjustified, unreasonable and illegal search and arrest

1 powers, and that such acts or omissions would, in fact, be permitted and ratified as
2 just and proper by the defendant THE CITY OF NEW YORK.

3 107. In addition to permitting a practice of unjustified, unreasonable and illegal and
4 abusive use of force and search and arrest powers against LGBT and TGNC persons,
5 the defendant THE CITY OF NEW YORK failed to maintain a proper system for the
6 investigation of complaints of unjustified, unreasonable and illegal and abusive use
7 of force and search and arrest powers by police officers.

8 108. The defendants have maintained systems for the investigation of complaints of
9 unjustified, unreasonable and illegal and abusive use of force and search and arrest
10 powers by police officers which have failed to properly identify such actions by its
11 police officers and subject police officers who commit such acts to closer
12 supervision, remedial training, discipline, or restraint, to the extent that it has
13 become the *de facto* policy and custom of said defendant to tolerate and ratify the
14 unjust, unreasonable and illegal use of force and search and arrest powers by its
15 police officers.

16 109. There also exists, as a policy and custom of the defendants a "code of silence
17 which is pervasive throughout said defendant's police department. Said 'code of
18 silence' is abided to by virtually all police officers of all ranks, including supervisory
19 police officers, and involves the refusal of police officers to give honest testimony,
20 or any testimony whatsoever, about incidents involving illegal, improper, and
21 abusive conduct by police officers that violate persons, such as the plaintiffs civil
22 rights. Said "code of silence" is tolerated, if not encouraged, by defendants as a
23 means to prevent effective criminal prosecution of those police officers who
24 engage in illegal conduct and to shield defendant THE CITY OF NEW YORK and THE
25

1 NEW YORK CITY POLICE DEPARTMENT from possible civil liability for the acts of
2 those police officers who violate persons, such as the plaintiff's civil rights.

3 110. The foregoing acts, omissions, systemic flaws, policies, and customs of the
4 defendants caused said defendant's police officers to believe that unjust,
5 unreasonable and illegal use of force and search and arrest powers would not be
6 aggressively, honestly and properly investigated, and that such acts as a matter of
7 policy and custom would be ratified, concealed, and justified by defendant THE
8 CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, with the
9 foreseeable result that defendants' police officers are more likely to engage in the
10 unjustified, unreasonable and illegal and abusive use of force and search and arrest
11 powers, particularly against LGBT and TGNC persons.

12 111. As a direct and proximate result of the aforesaid acts, omissions, systemic flaws,
13 policies and customs of the defendant, THE CITY OF NEW YORK / THE NEW YORK
14 CITY POLICE DEPARTMENT said defendant's employees, including all relevant
15 individual defendants, did assault, batter, falsely arrest, falsely imprison, swear out
16 false criminal complaints against, intentionally inflict emotional distress upon,
17 trespass upon the person of, and in a grossly negligent and wantonly reckless
18 manner inflict personal injuries upon plaintiff.

19 112. The defendant, THE CITY OF NEW YORK by reason of its aforesaid policies,
20 customs, acts, omissions, and its ratification of the acts of its agents, servants
21 and/or employees, has deprived plaintiff of rights and liberties secured to her
22 through the Constitution and Laws of the United States of America and the State of
23 New York, including the Fourth, Fifth, Eighth, and Fourteenth Amendments of the
24 United States Constitution and 42 U. S. C. Sections 1983 and 1988, and has caused
25 plaintiff great pain and physical, emotional, and psychological injuries.

1 113. The aforesaid acts, ratifications, omissions, customs and policies of the
2 defendant THE CITY OF NEW YORK were done with a deliberate and/or grossly
3 negligent indifference to the protection of the federally protected civil rights of
4 persons such as the plaintiff and said acts, ratifications, omissions, customs and
5 policies of defendant THE CITY OF NEW YORK were the direct and proximate cause
6 of the aforesaid violations of the civil rights secured to plaintiff under 42 U.S.C.
7 Sections 1981, 1983 1985(3), 1986 and 1988.

8 114. As a direct and proximate result of the above described violations of her
9 constitutional and statutory rights plaintiff suffered grievous bodily harm and
10 emotional injury, all of which was in violation of her rights under the laws and
11 Constitution of the United States, including the Fourth, Fifth, Eighth, and
12 Fourteenth Amendments and 42 U.S.C. Sections 1981 1983 1985(3), 1986 and
13 1988.

14 115. As a result of the foregoing, plaintiff has been damaged and seeks compensatory
15 damages, along with any punitive damages, costs, and attorneys' fees as may be
16 deemed proper by a jury.

17 116. The amount of damages exceeds the jurisdiction of all lower courts that would
18 otherwise have jurisdiction.

19 **EIGHTH CAUSE OF ACTION**
20 **ON BEHALF OF PLAINTIFF FOR MALICIOUS PROSECUTION**

21 117. Plaintiff repeats, reiterates and realleges each and every allegation contained in
22 the above paragraphs with the same force and effect as though fully set forth
23 herein.
24
25

1 118. That on or about January 8, 2017, Plaintiff was charged with Criminal Possession
2 of a Controlled Substance in the Seventh Degree in violation of New York Penal Law
3 §220.03 under docket number 2017KN001651.

4 119. That on or about January 8, 2017, subsequent to the arrest of plaintiff,
5 defendant their agents, servants and employees acting under their employment
6 and within the scope of their authority maliciously prosecuted and detained
7 plaintiff, without any just right or grounds therefore.

8 120. That plaintiff was wholly innocent, and was forced by the defendants to submit
9 to Court proceedings.

10 121. That the defendant, their agents, servants and employees falsely and maliciously
11 and without probable cause or provocation arrested plaintiff.

12 122. That the aforesaid commencement and/or continuation of the criminal charges
13 and prosecution were instituted and procured by defendants their agents, servants
14 and/or employees acting under their employment and within the scope of their
15 authority, unlawfully, with actual malice and without any probable cause, reason or
16 justification and without authority of the law and without any reasonable cause or
17 belief that the plaintiff had committed any crime and with no culpable conduct on
18 the part of the plaintiff contributing thereto.

19 123. That upon examination and investigation, the said charges were falsely and
20 maliciously made.

21 124. That the case against plaintiff was dismissed on or about October 2, 2017.

22 125. That the said prosecution and criminal charges and hearings were instituted and
23 procured by the defendants their agents, servants and employees in this action
24 unlawfully and maliciously and without any reasonable or probable cause
25 whatsoever.

1 126. That by reason of the aforesaid unlawful and malicious prosecution plaintiff was
2 deprived of her liberty, and was subjected to and caused to suffer great indignity,
3 humiliation, pain and great distress of mind and body and was held up to scorn and
4 ridicule, was injured in her character and reputation, was prevented from attending
5 her usual business and vocation, and the said plaintiff has been otherwise
6 damaged.

7 127. This action falls within one or more of the exemptions set forth in CPLR §1602.

8 128. The amount exceeds the jurisdiction of all lower courts that would otherwise
9 have jurisdiction.
10

11 WHEREFORE, plaintiff demands judgment and compensatory damages, individually
12 and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would
13 otherwise have jurisdiction as to the above-stated cause of action against all defendants;
14 punitive damages in an amount to be determined at trial as and for the above-stated causes of
15 action against the individual defendants; together with costs and disbursements of this action
16 and legal fees pursuant to 42 U.S.C. § 1988.
17

18 Dated: Central Islip, New York
19 February 27, 2018

20 Yours etc.
21 COELLO & LORENZOTTI, PLLC

22 
23 BY: MARJORIE Y. COELLO
24 320 Carleton Avenue, Suite 4900
25 Central Islip, New York 11722
Telephone: 631-232-0110
Facsimile: 888-296-2230
E-mail: MYC@CANDLLAW.COM

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VERIFICATION

STATE OF NEW YORK

SS.:

COUNTY OF SUFFOLK

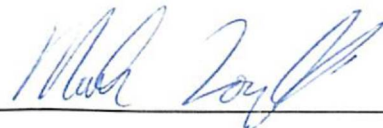
MARGARET NUNZIATA, being duly sworn, deposes and says:

I am a plaintiff in the within action; I have read the foregoing Summons & Complaint and know the contents thereof and the same is true to my own knowledge except as those matters alleged to be upon information and belief, and that as to those matters, I believe them to be true.

DATED: Suffolk, New York
September 10, 2019


MARGARET NUNZIATASTATE OF NEW YORK, COUNTY OF SUFFOLK ss.:

On the 13th day of September 2019, before me personally MARGARET NUNZIATA to me known, and known to me to be the individual described in, and who executed the foregoing Release, and duly acknowledged to me that he executed the same.


NOTARY PUBLIC

MARTIN LORENZOTTI
Notary Public, State of New York
No. 02LO6306174
Qualified in Nassau County
Commission Expires 06/16/2022

Index No: 504904/2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

MARGARET NUNZIATA

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-2" SAID DEFENDANTS
TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE
THOSE POLICE OFFICERS, and KINGS COUNTY DISTRICT ATTORNEY'S OFFICE,

Defendants.

AMENDED COMPLAINT

COELLO & LORENZOTTI, PLLC
ATTORNEYS FOR PLAINTIFF
320 CARLETON AVENUE, SUITE 4900
CENTRAL ISLIP, NEW YORK 11722
TELEPHONE: (631) 232-0110

ATTORNEY'S CERTIFICATION

STATE OF NEW YORK COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, does hereby certify,
pursuant to 22NYCRR 130-1.1 certifies that upon information and belief and reasonable inquiry, the
contentions contained in the annexed documents are not frivolous.

Dated: 2/5/2020

NOTICE OF ENTRY OR SETTLEMENT

PLEASE TAKE NOTICE than an order

NOTICE OF ENTRY

of which the within is a (true) (certified) copy of an Order duly entered in the office of the clerk of the
within named court on

NOTICE OF SETTLEMENT

will be presented for settlement to the Hon.

One of the judges of the within named

Court, at on 20 at o'clock M.

Dated: 2/5/2020

Yours etc.,



Marjorie Y. Coello